

consequences. *Id.* at ¶15. The Court does not find this credible.

The fact that the only specific reservation expressed by Ms. Leone, as reflected in the minutes, was the impact of possible discovery issues on readiness to proceed with such a court trial cuts against Ms. Leone's position. Ms. Leone had the wherewithal to carefully consider the impact of such a trial setting in light of the discovery posture of the case. She was plainly able to consider the impact of the setting on her litigation rights and its procedural posture. Yet, she failed to demand a jury trial or object to the setting of a court trial.

The Court has considered whether, in its discretion, to permit a jury trial on the Bifurcated Issue. See CJER Civ. Pro.—Trial, § 3.8. The Court has considered the totality of the circumstances and all evidence before the Court as to whether relief from waiver of a jury on the Bifurcated Issue would be just.

Among other things, the Court observes that the adjudication of the Bifurcated Issue involves a narrow issue whose adjudication would have minimal prejudicial impact on Ms. Leone's right to otherwise contest the substance of the claims against her before a jury. The resolution of the issue would put to rest an issue that will streamline the case and reduce the number of issues to be tried, whether before the court or a jury. Moreover, it will eliminate the possibility of a conflict in the determination on a threshold issue that would otherwise ultimately have to be tried both before the court and a jury separately.

The Court does not conclude that relief from waiver would be just and appropriate.

Disposition

The Court finds and rules as follows:

1. The Motion to Vacate Bench Trial is DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C23-03252
CASE NAME: COURTNEY NIELSON VS. DIANA GEORGE
HEARING ON SUMMARY MOTION
FILED BY: NIELSON, COURTNEY
TENTATIVE RULING:

Motion **continued** by the Court to March 2, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: MARHX, DENEA
TENTATIVE RULING:

Plaintiff Denea Marhx ("Plaintiff") filed a Motion for 1) Terminating Sanction, or 2) Issue Sanction, and 3) Monetary Sanction on September 10, 2025 (the "Motion for Sanctions"). The Motion for Sanctions was set for hearing on January 26, 2026. The motion was duly served. The motion is opposed.